

1 **SENATE FLOOR VERSION**

2 February 11, 2025

3 COMMITTEE SUBSTITUTE
4 FOR

5 SENATE BILL NO. 890

By: Daniels

6
7 An Act relating to campaign finance and financial
8 disclosures; amending 11 O.S. 2021, Sections 56-101,
9 56-102, 56-104, 56-105, 56-106, 56-107, 56-108, 56-
10 109, and 56-110, which relate to the Municipal
11 Campaign Finance and Financial Disclosure Act;
12 modifying definition; transferring certain duties
13 from municipal clerk to the Ethics Commission;
14 modifying certain posting requirements; amending 19
15 O.S. 2021, Sections 138.11, 138.12, 138.13, 138.14,
16 138.15, 138.16, 138.17, 138.18, and 138.19, which
17 relate to the County Campaign Finance and Financial
18 Disclosure Act; modifying definition; removing
19 certain requirement for notarization; removing
20 certain processing fee; transferring certain duties
21 from county election board to the Ethics Commission;
22 modifying certain posting requirements; amending 70
23 O.S. 2021, Sections 2-110, 2-111, 2-113, 2-114, 2-
24 115, 2-116, 2-117, 2-118, and 2-119, which relate to
the Technology Center District and Independent School
District Campaign Finance and Financial Disclosure
Act; transferring certain duties from school district
clerk to the Ethics Commission; modifying certain
posting requirements; updating statutory references;
updating statutory language; and providing an
effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 11 O.S. 2021, Section 56-101, is
amended to read as follows:

1 Section 56-101. Sections ~~41~~ 56-101 through ~~20~~ 56-110 of this
2 ~~act~~ title shall be the provisions of the Local Government Campaign
3 Finance and Financial Disclosure Act applicable to municipalities
4 and shall be known as the "Municipal Campaign Finance and Financial
5 Disclosure Act".

6 SECTION 2. AMENDATORY 11 O.S. 2021, Section 56-102, is
7 amended to read as follows:

8 Section 56-102. A. Definitions of terms used in the Municipal
9 Campaign Finance and Financial Disclosure Act shall be the same as
10 those terms are defined in Rules of the Ethics Commission
11 promulgated pursuant to Section 3 of Article XXIX of the Oklahoma
12 Constitution, unless otherwise provided herein.

13 B. As used in the Municipal Campaign Finance and Financial
14 Disclosure Act:

15 1. "Campaign committee" means a committee which may be composed
16 of one or more persons the purpose of which is to support the
17 election of a specific candidate to municipal office, whose name as
18 it will appear on the ballot shall appear in the name of the
19 committee;

20 2. "Municipal office" means any elective municipal office
21 established under state or municipal law; and

22 3. "Municipal political committee" means any committee composed
23 of one or more persons whose purpose includes the election or defeat
24 of one or more candidates for municipal office but which is not

1 required to register with ~~the Ethics Commission or~~ the Federal
2 Election Commission.

3 SECTION 3. AMENDATORY 11 O.S. 2021, Section 56-104, is
4 amended to read as follows:

5 Section 56-104. Each campaign committee shall file a statement
6 of organization with the ~~municipal clerk~~ Ethics Commission subject
7 to the same requirements as set forth for candidate committees for
8 state office required to file statements of organization ~~with the~~
9 ~~Ethics Commission~~ under Rules of the Ethics Commission promulgated
10 pursuant to Section 3 of Article XXIX of the Oklahoma Constitution,
11 including, but not limited to, time for filing and contents.

12 SECTION 4. AMENDATORY 11 O.S. 2021, Section 56-105, is
13 amended to read as follows:

14 Section 56-105. Every municipal political committee shall file
15 a statement of organization with the ~~municipal clerk~~ Ethics
16 Commission subject to the same requirements as set forth for
17 political committees required to file statements of organization
18 ~~with the Ethics Commission~~ under Rules of the Ethics Commission
19 promulgated pursuant to Section 3 of Article XXIX of the Oklahoma
20 Constitution, including, but not limited to, time for filing and
21 contents.

22 SECTION 5. AMENDATORY 11 O.S. 2021, Section 56-106, is
23 amended to read as follows:

24

1 Section 56-106. Every campaign committee and every municipal
2 political committee shall file a report of contributions and
3 expenditures with the ~~municipal clerk~~ Ethics Commission subject to
4 the same requirements as set forth for candidate committees and
5 political action committees, respectively, required to file reports
6 of contributions and expenditures ~~with the Ethics Commission~~ under
7 Rules of the Ethics Commission promulgated pursuant to Section 3 of
8 Article XXIX of the Oklahoma Constitution, including, but not
9 limited to, time for filing and contents.

10 SECTION 6. AMENDATORY 11 O.S. 2021, Section 56-107, is
11 amended to read as follows:

12 Section 56-107. Statements of organization and reports of
13 contributions and expenditures required to be filed with the
14 ~~municipal clerk~~ Ethics Commission under the Municipal Campaign
15 Finance and Financial Disclosure Act shall be public records. The
16 ~~municipal clerk~~ Ethics Commission shall maintain statements of
17 organization and reports of contributions and expenditures for four
18 (4) years after the date on which they are filed, ~~if not posted on~~
19 ~~the municipality's website as provided herein,~~ at which time the
20 documents may be destroyed or retained subject to the discretion of
21 the ~~municipal clerk~~ Ethics Commission. ~~If the municipality in which~~
22 ~~the statements of organization and reports of contributions and~~
23 ~~expenditures are filed maintains an Internet website, the municipal~~
24 ~~clerk~~ The Ethics Commission may post ~~on the website~~ copies of

1 statements of organization and reports of contributions and
2 expenditures.

3 SECTION 7. AMENDATORY 11 O.S. 2021, Section 56-108, is
4 amended to read as follows:

5 Section 56-108. All candidates for municipal office and all
6 elected municipal officers shall be required to file a statement of
7 financial interests with the ~~municipal clerk~~ Ethics Commission
8 subject to the same requirements as set forth for candidates for
9 state office required to file statements of financial interests ~~with~~
10 ~~the Ethics Commission~~ under Rules of the Ethics Commission
11 promulgated pursuant to Section 3 of Article XXIX of the Oklahoma
12 Constitution, including, but not limited to, time for filing and
13 contents.

14 SECTION 8. AMENDATORY 11 O.S. 2021, Section 56-109, is
15 amended to read as follows:

16 Section 56-109. Statements of financial interests required to
17 be filed with the ~~municipal clerk~~ Ethics Commission under the
18 Municipal Campaign Finance and Financial Disclosure Act shall be
19 public records. The ~~municipal clerk~~ Ethics Commission shall
20 maintain statements of financial interests for four (4) years after
21 the date on which they are filed, ~~if not posted on the~~
22 ~~municipality's website as provided herein,~~ at which time the
23 documents may be destroyed or retained subject to the discretion of
24 the ~~municipal clerk~~ Ethics Commission. ~~If the municipality in which~~

1 ~~the statements of financial interests are filed maintains an~~
2 ~~Internet website, the municipal clerk~~ The Ethics Commission may post
3 ~~on the website~~ copies of statements of financial interests.

4 SECTION 9. AMENDATORY 11 O.S. 2021, Section 56-110, is
5 amended to read as follows:

6 Section 56-110. The Municipal Campaign Finance and Financial
7 Disclosure Act shall be enforced by the Ethics Commission in the
8 same manner as Rules of the Ethics Commission promulgated pursuant
9 to Section 3 of Article XXIX of the Oklahoma Constitution are
10 enforced, including, but not limited to, acceptance of complaints,
11 civil prosecutions, settlement agreements, and any other compliance
12 practices or requirements. Complaints ~~may be received by the Ethics~~
13 ~~Commission alleging filing of statements or reports required to be~~
14 ~~filed under the Municipal Campaign Finance and Financial Disclosure~~
15 ~~Act later than the prescribed time for filing. Such complaints~~
16 shall be ~~in the same form as other complaints~~ made according to the
17 Rules of the Ethics Commission promulgated pursuant to Section 3 of
18 Article XXIX of the Oklahoma Constitution. Upon receipt of ~~such~~
19 complaints of late filing, the Ethics Commission shall investigate
20 whether the allegation or allegations are true and, if so, shall
21 assess a late filing penalty of One Hundred Dollars (\$100.00) per
22 day, not to exceed a maximum of One Thousand Dollars (\$1,000.00) for
23 the filing of any statement or report. If the Ethics Commission
24 determines the allegation or allegations are not true, it shall take

1 no further action. Persons assessed a late filing fee may protest
2 the assessment subject to provisions of the Administrative
3 Procedures Act.

4 SECTION 10. AMENDATORY 19 O.S. 2021, Section 138.11, is
5 amended to read as follows:

6 Section 138.11. Sections ~~2~~ 138.11 through ~~10~~ 138.19 of this act
7 title shall be the provisions of the Local Government Campaign
8 Finance and Financial Disclosure Act applicable to counties and
9 shall be known as the "County Campaign Finance and Financial
10 Disclosure Act".

11 SECTION 11. AMENDATORY 19 O.S. 2021, Section 138.12, is
12 amended to read as follows:

13 Section 138.12. A. Definitions of terms used in the County
14 Campaign Finance and Financial Disclosure Act shall be the same as
15 those terms are defined in Rules of the Ethics Commission
16 promulgated pursuant to Section 3 of Article XXIX of the Oklahoma
17 Constitution, unless otherwise provided herein.

18 B. As used in the County Campaign Finance and Financial
19 Disclosure Act:

20 1. "Campaign committee" means a committee which may be composed
21 of one or more persons the purpose of which is to support the
22 election of a specific candidate to county office, whose name as it
23 will appear on the ballot shall appear in the name of the committee;

24

1 2. "County office" means any elective county office for which
2 Declarations of Candidacy are filed with the secretary of the county
3 election board as required by Section 5-103 of Title 26 of the
4 Oklahoma Statutes; and

5 3. "County political committee" means any committee composed of
6 one or more persons whose purpose includes the election or defeat of
7 one or more candidates for county office but which is not required
8 to register with ~~the Ethics Commission or~~ the Federal Election
9 Commission.

10 SECTION 12. AMENDATORY 19 O.S. 2021, Section 138.13, is
11 amended to read as follows:

12 Section 138.13. Each campaign committee shall file a ~~notarized~~
13 statement of organization with the ~~county election board~~ Ethics
14 Commission subject to the same requirements as set forth for
15 candidate committees for state office to file statements of
16 organization ~~with the Ethics Commission~~ under Rules of the Ethics
17 Commission promulgated pursuant to Section 3 of Article XXIX of the
18 Oklahoma Constitution, including, but not limited to, time for
19 filing and contents, except as otherwise provided in the County
20 Campaign Finance and Financial Disclosure Act. ~~The statement of~~
21 ~~organization shall be accompanied by a check drawn upon the campaign~~
22 ~~committee's account in the amount of Fifty Dollars (\$50.00) as a~~
23 ~~nonrefundable processing fee to be deposited in the County Election~~
24 ~~Board Special Depository Account. Expenditures from such fees may~~

1 ~~be made by the secretary of the county election board for any lawful~~
2 ~~purpose.~~

3 SECTION 13. AMENDATORY 19 O.S. 2021, Section 138.14, is
4 amended to read as follows:

5 Section 138.14. Every county political committee shall file a
6 notarized statement of organization with the ~~county election board~~
7 Ethics Commission subject to the same requirements as set forth for
8 political committees required to file statements of organization
9 ~~with the Ethics Commission~~ under Rules of the Ethics Commission
10 promulgated pursuant to Section 3 of Article XXIX of the Oklahoma
11 Constitution, including, but not limited to, time for filing and
12 contents.

13 SECTION 14. AMENDATORY 19 O.S. 2021, Section 138.15, is
14 amended to read as follows:

15 Section 138.15. Every campaign committee and every county
16 political committee shall file reports of contributions and
17 expenditures with the ~~county election board~~ Ethics Commission
18 subject to the same requirements as set forth for reports of
19 contributions and expenditures filed ~~with the Ethics Commission~~
20 under Rules of the Ethics Commission promulgated pursuant to Section
21 3 of Article XXIX of the Oklahoma Constitution, including, but not
22 limited to, time for filing and contents.

23 SECTION 15. AMENDATORY 19 O.S. 2021, Section 138.16, is
24 amended to read as follows:

1 Section 138.16. Statements of organization and reports of
2 contributions and expenditures required under the County Campaign
3 Finance and Financial Disclosure Act shall be public records. The
4 ~~county election board~~ Ethics Commission shall maintain statements of
5 organization and reports of contributions and expenditures for four
6 (4) years after the date on which they are filed or prepared, ~~if not~~
7 ~~posted on the county's website as provided herein,~~ at which time the
8 documents may be destroyed or retained at the discretion of the
9 ~~county election board~~ Ethics Commission. ~~If the county in which the~~
10 ~~statements of organization are filed maintains an Internet website,~~
11 ~~the county election board~~ The Ethics Commission may post ~~on the~~
12 ~~website~~ copies of statements of organization and reports of
13 contributions and expenditures.

14 SECTION 16. AMENDATORY 19 O.S. 2021, Section 138.17, is
15 amended to read as follows:

16 Section 138.17. All candidates for county office and all
17 elected county officers shall be required to file a ~~notarized~~
18 statement of financial interests with the ~~county election board~~
19 Ethics Commission subject to the same requirements as set forth for
20 statements of financial interests filed ~~with the Ethics Commission~~
21 under Rules of the Ethics Commission promulgated pursuant to Section
22 3 of Article XXIX of the Oklahoma Constitution.

23 SECTION 17. AMENDATORY 19 O.S. 2021, Section 138.18, is
24 amended to read as follows:

1 Section 138.18. Statements of financial interests required
2 under the County Campaign Finance and Financial Disclosure Act shall
3 be public records. The ~~county election board~~ Ethics Commission
4 shall maintain statements of financial interests for four (4) years
5 after the date on which they are filed, at which time the documents
6 may be destroyed or retained at the discretion of the ~~county~~
7 ~~election board~~ Ethics Commission. The Ethics Commission may post
8 copies of statements of organization and reports of contributions
9 and expenditures.

10 SECTION 18. AMENDATORY 19 O.S. 2021, Section 138.19, is
11 amended to read as follows:

12 Section 138.19. The County Campaign Finance and Financial
13 Disclosure Act shall be enforced by the Ethics Commission in the
14 same manner as Rules of the Ethics Commission promulgated pursuant
15 to Section 3 of Article XXIX of the Oklahoma Constitution are
16 enforced, including, but not limited to, acceptance of complaints,
17 civil prosecutions, settlement agreements, and any other compliance
18 practices or requirements. Complaints ~~may be received by the Ethics~~
19 ~~Commission alleging filing of statements required to be filed under~~
20 ~~the County Campaign Finance and Financial Disclosure Act later than~~
21 ~~the prescribed time for filing or failure to produce reports~~
22 ~~required to be available for public inspection and copying. Such~~
23 ~~complaints shall be in the same form as other complaints made~~
24 according to the Rules of the Ethics Commission promulgated pursuant

1 to Section 3 of Article XXIX of the Oklahoma Constitution. Upon
2 receipt of ~~such~~ complaints, the Ethics Commission shall investigate
3 whether the allegation or allegations are true and, if so, shall
4 assess a late reporting penalty ~~of~~ up to One Hundred Dollars
5 (\$100.00) per day, not to exceed a maximum of One Thousand Dollars
6 (\$1,000.00) for the filing of any statement or report. If the
7 Ethics Commission determines the allegation or allegations are not
8 true, it shall take no further action. Persons assessed a late
9 reporting penalty may protest the assessment subject to provisions
10 of the Administrative Procedures Act.

11 SECTION 19. AMENDATORY 70 O.S. 2021, Section 2-110, is
12 amended to read as follows:

13 Section 2-110. Sections ~~21~~ 2-110 through ~~30~~ 2-119 of this ~~act~~
14 title shall be the provisions of the Local Government Campaign
15 Finance and Financial Disclosure Act applicable to technology center
16 districts and independent school districts and shall be known as the
17 "Technology Center District and Independent School District Campaign
18 Finance and Financial Disclosure Act".

19 SECTION 20. AMENDATORY 70 O.S. 2021, Section 2-111, is
20 amended to read as follows:

21 Section 2-111. A. Definitions of terms used in the Technology
22 Center District and Independent School District Campaign Finance and
23 Financial Disclosure Act shall be the same as those terms are
24 defined in Rules of the Ethics Commission promulgated pursuant to

1 Section 3 of Article XXIX of the Oklahoma Constitution, unless
2 otherwise provided herein.

3 B. As used in the Technology Center District and Independent
4 School District Campaign Finance and Financial Disclosure Act:

5 1. "Campaign committee" means a committee which may be composed
6 of one or more persons the purpose of which is to support the
7 election of a specific candidate to school district office, whose
8 name as it will appear on the ballot shall appear in the name of the
9 committee;

10 2. "School district" means a technology center district or an
11 independent school district;

12 3. "School district office" means any elective school district
13 office for which Declarations of Candidacy are filed with the
14 secretary of the county election board as required by Section 13A-
15 105 of Title 26 of the Oklahoma Statutes; and

16 4. "School district political committee" means any committee
17 composed of one or more persons whose purpose includes the election
18 or defeat of one or more candidates for school district office but
19 which is not required to register with ~~the Ethics Commission or the~~
20 Federal Election Commission.

21 SECTION 21. AMENDATORY 70 O.S. 2021, Section 2-113, is
22 amended to read as follows:

23 Section 2-113. Each campaign committee shall file a statement
24 of organization with the ~~school district clerk~~ Ethics Commission

1 subject to the same requirements as set forth for candidate
2 committees for state office required to file statements of
3 organization ~~with the Ethics Commission~~ under Rules of the Ethics
4 Commission promulgated pursuant to Section 3 of Article XXIX of the
5 Oklahoma Constitution, including, but not limited to, time for
6 filing and contents.

7 SECTION 22. AMENDATORY 70 O.S. 2021, Section 2-114, is
8 amended to read as follows:

9 Section 2-114. Every school district political committee shall
10 file a statement of organization with the ~~school district clerk~~
11 Ethics Commission subject to the same requirements as set forth for
12 political committees required to file statements of organization
13 ~~with the Ethics Commission~~ under Rules of the Ethics Commission
14 promulgated pursuant to Section 3 of Article XXIX of the Oklahoma
15 Constitution, including, but not limited to, time for filing and
16 contents.

17 SECTION 23. AMENDATORY 70 O.S. 2021, Section 2-115, is
18 amended to read as follows:

19 Section 2-115. Every campaign committee and every school
20 district political committee shall file a report of contributions
21 and expenditures with the ~~school district clerk~~ Ethics Commission
22 subject to the same requirements as set forth for candidate
23 committees and political action committees, respectively, required
24 to file reports of contributions and expenditures ~~with the Ethics~~

1 ~~Commission~~ under Rules of the Ethics Commission promulgated pursuant
2 to Section 3 of Article XXIX of the Oklahoma Constitution,
3 including, but not limited to, time for filing and contents.

4 SECTION 24. AMENDATORY 70 O.S. 2021, Section 2-116, is
5 amended to read as follows:

6 Section 2-116. Statements of organization and reports of
7 contributions and expenditures required to be filed with the ~~school~~
8 ~~district clerk~~ Ethics Commission under the Technology Center
9 District and Independent School District Campaign Finance and
10 Financial Disclosure Act shall be public records. The ~~school~~
11 ~~district clerk~~ Ethics Commission shall maintain statements of
12 organization and reports of contributions and expenditures for four
13 (4) years after the date on which they are filed, ~~if not posted on~~
14 ~~the school district's website as provided herein,~~ at which time the
15 documents may be destroyed or retained subject to the discretion of
16 the ~~school district clerk~~ Ethics Commission. ~~If the school district~~
17 ~~in which the statements of organization and reports of contributions~~
18 ~~and expenditures are filed maintains an Internet website, the school~~
19 ~~district clerk~~ The Ethics Commission may post ~~on the website~~ copies
20 of statements of organization and reports of contributions and
21 expenditures.

22 SECTION 25. AMENDATORY 70 O.S. 2021, Section 2-117, is
23 amended to read as follows:

1 Section 2-117. All candidates for school district office and
2 all elected school district officers shall be required to file a
3 statement of financial interests with the ~~school district clerk~~
4 Ethics Commission subject to the same requirements as set forth for
5 candidates for state office required to file statements of financial
6 interests ~~with the Ethics Commission~~ under Rules of the Ethics
7 Commission promulgated pursuant to Section 3 of Article XXIX of the
8 Oklahoma Constitution, including, but not limited to, time for
9 filing and contents.

10 SECTION 26. AMENDATORY 70 O.S. 2021, Section 2-118, is
11 amended to read as follows:

12 Section 2-118. Statements of financial interests required to be
13 filed with the ~~school district clerk~~ Ethics Commission under the
14 Technology Center District and Independent School District Campaign
15 Finance and Financial Disclosure Act shall be public records. The
16 ~~school district clerk~~ Ethics Commission shall maintain statements of
17 financial interests for four (4) years after the date on which they
18 are filed, ~~if not posted on the school district's website as~~
19 ~~provided herein,~~ at which time the documents may be destroyed or
20 retained subject to the discretion of the ~~school district clerk~~
21 Ethics Commission. ~~If the school district in which the statements~~
22 ~~of financial interests are filed maintains an Internet website, the~~
23 ~~school district clerk~~ The Ethics Commission may post ~~on the website~~
24 copies of statements of financial interests.

1 SECTION 27. AMENDATORY 70 O.S. 2021, Section 2-119, is
2 amended to read as follows:

3 Section 2-119. The Technology Center District and Independent
4 School District Campaign Finance and Financial Disclosure Act shall
5 be enforced by the Ethics Commission in the same manner as Rules of
6 the Ethics Commission promulgated pursuant to Section 3 of Article
7 XXIX of the Oklahoma Constitution are enforced, including, but not
8 limited to, acceptance of complaints, civil prosecutions, settlement
9 agreements, and any other compliance practices or requirements.

10 ~~Complaints may be received by the Ethics Commission alleging filing~~
11 ~~of statements or reports required to be filed under the Technology~~
12 ~~Center District and Independent School District Campaign Finance and~~
13 ~~Disclosure Act later than the prescribed time for filing. Such~~
14 ~~complaints shall be in the same form as other complaints made~~
15 according to the Rules of the Ethics Commission promulgated pursuant
16 to Section 3 of Article XXIX of the Oklahoma Constitution. Upon
17 receipt of ~~such~~ complaints of late filing, the Ethics Commission
18 shall investigate whether the allegation or allegations are true
19 and, if so, shall assess a late filing penalty of One Hundred
20 Dollars (\$100.00) per day, not to exceed a maximum of One Thousand
21 Dollars (\$1,000.00) for the filing of any statement or report. If
22 the Ethics Commission determines the allegation or allegations are
23 not true, it shall take no further action. Persons assessed a late
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1 filing fee may protest the assessment subject to provisions of the
2 Administrative Procedures Act.

3 SECTION 28. This act shall become effective November 1, 2025.

4 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY
5 February 11, 2025 - DO PASS AS AMENDED BY CS
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